Karnataka Power Corporation Ltd vs Karnataka Electricity Regulatory ... on 18 March, 2009

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

Appeal No. 89 of 2008

Dated: March 18, 2009

Present: Hon'ble Mrs. Justice Manju Goel, Judicial Member
Hon'ble Mr. H.L. Bajaj, Technical Member

IN THE MATTER OF:

Karnataka Power Corporation Ltd.
82, Shakti Bhavan,
Race Course Road
Bangalore 560 001
(A Generating Company)
Represented by its Managing Director
... Appellant(s)

Versus

1.Karnataka Electricity Regulatory Commission
6th & 7th Floor, Mahalaxmi Chambers,
No. 9/2, Mahatma Gandhi Road,
Bangalore 560 001.
Represented by its Chairman

2. Karnataka Power Transmission Corporation Limited
Kavery Bhavan, Bangalore 560 009
Represented by its Managing Director

3. Chamundeshwari Electricity Supply Corporation Limited
(A Government of Karnataka Enterprise)
Regd. Office: No. 927,LJ Avenue Commercial complex,
New Kantharaj Urs Road, Saraswathipuram,
Mysore-570 009.

4. Gulbarga Electricity Supply Company Limited
(A Government of Karnataka Enterprise)
Regd. Office: Gulbarga Main Road,
Gulbarga 585 102.

DB/SH

5. Mangalore Supply Company Limited

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   ( A Government of Karnataka Enterprise)
   Regd. Office: "Paradigm Plaza",
   AB Shetty Circle,
   Mangalore-575 001

6. Hubli Electricity Supply Corporation Limited
   ( A Government of Karnataka Enterprise)
   Corporate Office, Office: Navanagar
   Hubli 25.

7. Bangalore Electricity Supply Company Limited
   ( A Government of Karnataka Enterprise)
   Corporate Office,
   Regd. Office : KR circle,
   Bangalore 560 009
                                                          -Respondent(s)
Counsel for the Appellant(s)    :     Mr. Pratap Venugopal

Counsel for the Respondent(s) :       Mr. S. Balaji and Mr. B. N. Prakash

                                      Mr. Anand K. Ganesan and
                                      Mr. M. G. Ramachandran for KPTCL

                                    ORDER
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Mr. Pratap Venugopal, appearing for the appellant, submits that the principal ground raised in the appeal is denial of principles of natural justice in as much as the appellant was not afforded opportunity of being heard before the impugned order was passed.

2. It is submitted by Mr. Venugopal that the impugned order was passed in the matter of the draft PPA of existing Hydel Station between the Karnataka Power Transmission Corporation Limited(KPTCL) and the appellant. Before approval of the PPA, the Karnataka Electricity Regulatory Commission (Commission for short) issued advertisement in the English and Kannad dailies. No objection was received by the Commission. It is contended by the appellant DB/SH that the impugned order dated 10/04/2003 was passed without affording to the appellant any opportunity to put-forth its views/clarifications on the modifications intended by the Commission.

3. Mr. Anand K. Ganesan, advocate representing the respondent Karnataka Power Transmission Commission Limited(KPTCL) does not have any objection to the prayer. The Commission represented by Mr. S. Balaji is prepared to take the directions as per the prayer made today. No other respondent has put in appearance.

4. Having heard parties counsel, we think it will be appropriate for the Commission to re-determine the issue of approval of the PPA after affording to the appellant an opportunity to present its views and submissions to the Commission.

5. Accordingly, we allow the appeal and set-aside the impugned order and direct the Karnataka Electricity Regulatory Commission (KERC) to pass a fresh order within two months hereof on the

PPA between the appellant and the respondent no. 2(KPTCL) after affording an opportunity to the appellant to make its submission/clarifications in respect of the PPA.

(H. L. Bajaj) (Justice Manju Goel)
Technical Member Judicial Member

DB/SH